

24STCV07331 24STCV07331

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-08-27

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Tentative Ruling

The Court will call this matter and hear from counsel on all issues. The Court also has three questions.

1. Plaintiff submitted new evidence raising new issues with her reply. Defendant objects. Should the Court sustain the objection and ignore the new evidence and issues? If not, does Defendant request the opportunity to submit a supplemental filing in response to the reply?

2. Defendant makes an affirmative request for relief (disqualification) in his opposition.

Although the Court understands the background here (based on the input from counsel received when the ex parte application was heard), this is not procedurally proper in a civil case.

(The Court understands that the procedure in the Family Law Division may be different.) Does Plaintiff waive the procedural irregularity and agree that if her motion is denied, the Court may then proceed to consider the affirmative request made by Defendant?

3. Do the parties agree that the case law is not settled with regard to whether, in this context, an ethical wall is appropriate and sufficient?